

4.	25CV0195	JODY GROVES VS. DIANNE GEE ET AL
MOTION TO DISMISS		

On June 2, 2026, Defendants, Diane and David Gee (“Defendants”), filed a Notice of Motion and Motion for Order to Dismiss the Entire Action or, in the Alternative, Motion to Vacate all CMC Dates and Set a Date to Conclude Arbitration; Memorandum of Points and Authorities; Declaration of John D. Broghammer in Support; and [Proposed] Order Filed Concurrently Herewith. A Proof of Service was filed on the same date.

Plaintiff, Jody Groves, filed an Opposition to Defendant’s Motion for Order to Dismiss Entire Action Or, in the Alternative, Motion to Vacate all CMC Dates and Set a Date to Conclude Arbitration on June 30, 2026.

On June 12, 2025, the Court entered an Order Compelling Arbitration and Staying Proceedings. To date, arbitration has not been initiated by Plaintiff, Jody Groves, an Individual DBA Jody Groves Construction (“Plaintiff”). Defendants argue there is no factual or legal reasons to continue the litigation, as the Court previously ordered arbitration over a year ago. Defendants assert that the case has been fully resolved and is rendered moot, therefore having nothing for the Court or jury to decide with the arbitration ruling.

Plaintiff argues that the action is not moot, as the underlying dispute remains unresolved and no arbitration award has been entered or settlement has been reached. An order compelling arbitration does not resolve the merits of the dispute.

Additionally, Defendants contend that the Court has the power to dismiss the case where continuing is a waste of judicial and litigant resources. Defendants contend that since the motion to compel arbitration was entered by the Court, Plaintiff has ignored most communications and requests. Plaintiff failed to respond to Defendant, Umpqua Bank’s, Demurrer, which was sustained without leave to amend. Plaintiff did not attend the last Case Management Conference which resulted in an Order to Show Cause Hearing. At the OSC, Plaintiff’s counsel asserted that it was Defendants’ obligation to file for arbitration. The continued case management conferences have caused Defendants to incur additional unnecessary costs and deplete court resources.

Plaintiff asserts that Code of Civil Procedure § 1281.4 authorizes the Court to stay judicial proceedings pending completion of arbitration, not dismissal because arbitration has not yet been completed. Plaintiff remains willing to proceed with arbitration and requests the Court establish a reasonable deadline for commencement of arbitration if the Court determines additional direction is necessary.

A trial court exceeds its jurisdiction when it dismisses a plaintiff's claim against defendants for failure to prosecute after compelling the claims to arbitration and staying the action against the defendants. *Lew-Williams v. Petrosian* (2024) 101 Cal.App.5th 97, 107. A defendant seeking dismissal must do so by initiating arbitration and requesting the arbitrator dismiss arbitration for a plaintiff's failure to prosecute.

Accordingly, **when a plaintiff “fail[s] to timely prosecute the arbitration,” a defendant's “only avenue for redress” is in the arbitration proceeding.** (*Blake v. Ecker* (2001) 93 Cal.App.4th 728, 737, 113 Cal.Rptr.2d 422 (*Blake*), disapproved on another ground in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107, fn. 5, 29 Cal.Rptr.3d 249, 112 P.3d 636; see *Titan/Value, supra*, 29 Cal.App.4th at p. 488, 35 Cal.Rptr.2d 4.) “The trial court may not step into a case submitted to arbitration and tell the arbitrator what to do and when to do it: it may not resolve procedural questions, order discovery, determine the status of claims before the arbitrator or set the case for trial because of a party's alleged dilatory conduct. It is for the arbitrator, and not the court, to resolve such questions.” (*Titan/Value*, at p. 489, 35 Cal.Rptr.2d 4; accord, *Blake*, at p. 738, 113 Cal.Rptr.2d 422; *Brock, supra*, 10 Cal.App.4th at p. 1808, 13 Cal.Rptr.2d 678 [**remedy for “dilatory tactics” in an arbitration is to “move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence”**]; see *Byerly v. Sale* (1988) 204 Cal.App.3d 1312, 1316, 251 Cal.Rptr. 749 (*Byerly*) [“arbitration has a life of its own outside the judicial system, and **only the arbitrator should determine whether there has been an unreasonable delay in prosecution which would justify dismissal**”].) *Id.* at 106. (emphasis added)

Code of Civil Procedure § 1238.8 provides an arbitration award shall be made within the time fixed therefor by the agreement, or, if not so fixed, within such time as the court orders on petition of a party to the arbitration.

We hold that absent an arbitration completion deadline established by agreement, section 1283.8 gives the trial court the power, on petition of a party to the arbitration, to set a date by which the arbitration proceeding must be completed and the award rendered. The better practice is to establish that date when the case is first ordered to arbitration. However, the court has discretion to entertain a petition and set a completion date even after the arbitration is in progress. Of course, any date chosen (whether before or after arbitration has commenced) must be reasonable in light of the circumstances presented by the particular arbitration. *Bosworth v. Whitmore* (2006) 135 Cal.App.4th 536, 550 [37 Cal.Rptr.3d 560, 571]

Defendants' request to dismiss the entire action is denied. The Court grants Defendants' request to set a date to conclude arbitration. Plaintiff is ordered to initiate arbitration within 30

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days of the court's order. Arbitration shall be completed within 180 days of the Court's order, unless the arbitrator determines that additional time is necessary. The Court denies Defendants' request to vacate all case management conference dates.

TENTATIVE RULING #4:

DEFENDANTS' REQUEST TO DISMISS THE ENTIRE ACTION IS DENIED. THE COURT GRANTS DEFENDANTS' REQUEST TO SET A DATE TO CONCLUDE ARBITRATION. PLAINTIFF IS ORDERED TO INITIATE ARBITRATION WITHIN 30 DAYS OF THE COURT'S ORDER. ARBITRATION SHALL BE COMPLETED WITHIN 180 DAYS OF THE COURT'S ORDER, UNLESS THE ARBITRATOR DETERMINES THAT ADDITIONAL TIME IS NECESSARY. DEFENDANT'S REQUEST TO VACATE ALL CASE MANAGEMENT CONFERENCE DATES IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.